SHAYNE VAN ROYEN
versus
THE STATE

HIGH COURT OF ZIMBABWE
FOROMA J
HARARE, 17 June, 01 July 2025 & 19 March 2026

*Mr J Dondo***,** for the appellant
R Chikosha for the respondent

Criminal Appeal

FOROMA J : This is an appeal against a conviction for contravening s52(2) of the Road Traffic Act as a result of which appellant was sentenced to pay a fine of US4 350,00 or the equivalent at the prevailing bank rate or 20 days imprisonment. Appellant was granted up to 31/03/25 to pay the fine.

Appellant noted an appeal against the whole judgment of the *court a quo* which appeal was noted on the 25th of March 2025 against both conviction and sentence.

In compliance with Rule 102(3) of the High Court Rules 2021, the represented applicant made the following undertaking:-

> "Further Take Notice That the Appellant undertakes to pay the costs for the preparation of the Record of Proceedings as soon as such costs are ascertained."

In due course the appellant filed its heads of argument and so did the respondent. In its heads of argument filed on 23/05/25, the respondent raised a point *in limine* in which it objected to the validity of the appeal on account of what Respondent considered to be a failure to comply with Rule 100(3) of the High Court Rules. The objection *in limine* was couched as follows:

> "Point *in limine*
> (1) Appellant was convicted of contravening s52(2) of the Road Traffic Act [*Chapter 13:11*] 'negligence driving' …
> (2) Appellant has petitioned this Honourable Court appealing against both conviction and sentence.
>
> However the notice of appeal is silent about the issue of payment associated with preparation of the appeal record of proceedings as required by Rule 100 of the High Court Rules 2021. See also case of *S* v *Denias Saurosi* & *Anor* HH 249/24 HCH 1186/24.

(3) The appeal record itself does not bear any receipts as proof of payment for the preparation of the appeal record.
(4) In the absence of such proof mentioned above Respondent humbly submit that the appeal is defective and there is no appeal before the Court as per High Court Rules.
(5) Wherefore the matter be struck off the roll for non-compliance with the Rules." Respondent Did not additionally file heads of argument on the merits in the event that point *in limine* did not succeed

The appellant disagreed with the position taken *in limine* by the respondent and filed a response to respondent's objection *in limine* couched as follows:

"Appellant's response to respondent's Heads of Argument

(1) It is submitted that the Preliminary point raised on behalf of the Respondent is devoid of merit and it is difficult to understand why the preliminary point is raised in the first place
    (1.1) A perusal of the Notice of Appeal reveals that Appellant made an undertaking to pay the costs for the preparation of the Record of Proceedings as soon as such costs have been ascertained.
    (1.2) The actual costs for the preparation of the record were also paid on the date the appeal was noted as will appear from a copy of the receipts attached as A1 and A2.
(2) One would have expected Respondent to deal with the merits or otherwise of the appeal and not limit his response to the point *in limine* which is totally devoid of merit.
(3) The point *in limine* ought to be dismissed and the appeal ought to be determined on merits."

It is significant to note that appellant did comply with Rule 100 in that it made a written undertaking to pay the actual cost once determined. However such amount as was determined on the date of noting the appeal in the sum of USD $121, 00 and was not the actual cost of the record as contended by appellant but only an estimate of the cost of preparation of the record. This is because as at the date of noting the appeal the clerk of court could not have at that stage have been able to ascertain the actual cost of preparing the case of the record of the proceedings subject of the appeal.

Appellant appears to have misconstrued the estimate of the cost of record paid on the date of noting appeal as the actual cost. This is apparent from appellant's submissions at the hearing as the preparation of the record was not yet complete by then. This is also apparent from the certificate of compliance filed on 22/05/25 which the court could not consider as resolutive of the issue of the costs. In fact at the hearing of the matter Appellant shifted goal posts by seeking to argue that since the certificate of compliance by the clerk of court indicated a compliance there ceased to be any onus on the appellant to further prove compliance with the rule in relation to paying of costs of preparing the record. Mr Dondo who appeared on behalf of the

Appellant sought to draw a distinction between the case of *Denias Saurosi* judgment (*supra*) and the one *in casu*. The submission did not make the Appellant's case any stronger as in fact appellant appreciated that the size of the record was 167 pages and yet the sum of USD $121, 00 at US$ 1.00 per page even though in the local currency as converted was paid. Mr Dondo's argument sought to shift the onus of compliance with Rule 100 on the clerk of court which would not be legally tenable since the onus to demonstrate compliance would be on the Appellant with the clerk of court's role being to confirm that the payments made tallied with the size of the record as determined.

The fact that the record size was 167 pages as against 121 pages paid for on the date of noting appeal speaks volumes regarding compliance with the rules. Appellant realising that it had not complied with Rule 100 paid the correct charge and sought to blame the clerk of court for a late nonpayment of the shortfall by suggesting that the clerk of court had never communicated that there was a short fall due by appellant. This argument is lame in that even if Appellant noted that the clerk of court had made an error such error though apparent would not serve to excuse appellant from complying with the correct liability as determined by the correct size of the record as per pagination of the record. Appellant's argument is tantamount to suggesting that determination of the cost of the record is determined by the issuing of a certificate of compliance regardless of any mistakes such certificate may contain. It is our view that compliance with Rule 100 aforesaid can only be considered as established where the pagination as reflected on the certificate reconciles with the physical pagination of the record unless any discrepancies are satisfactorily explained by the clerk of court (issuer of the certificate of compliance).

Quite clearly the acceptance by the appellant of liability for the shortfall arising from the actual size of the record as 167 pages as opposed to 112 puts paid to appellant's argument that it complied with Rule 100 aforesaid as such contention is only raised after the raising of the point limine by the respondent.

It is clear that appellant's alternative argument that any difference as arose from the clerk of court's error having been paid before the hearing of the appeal thus saying the appeal in terms of subsection 4 is a lame argument which with respect the case of *Denias Saurosi* adequately addressed that is to say the duty to prosecute the appeal is on the litigant appellant and not on the clerk of court.

In the circumstances the appellant failed to comply with Rule 100 (5) *in casu* and such failure rendered his appeal a nullity and respondent's point *in limine* was therefore correctly taken.

The appellant's appeal is accordingly struck off the roll.

FOROMA J……

KWENDA J ……..CONCURS

Dondo and Partners, applicant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners